

In this canvass, both before and after I became a candidate, no argument or appeal of mine was directed against the perpetuation of the Union. Believing, however, that the signs of

which you are entitled, I received this day the St. Joseph 'Valley Register,' marked by you, to call my attention to an article in answer to your defense, which was just in all things, save your too complimentary terms.

"I wish I had the letter quoted from, that you might publish the whole of that which is garbled to answer a purpose. In a part of the letter not published, I put such a damper on the attempt to fix on me the desire to break up our Union, and presented other points in a form so little acceptable to the unfriendly inquirers, that the publication of the letter had to be drawn out of them.

"At the risk of being wearisome, but encouraged by your marked friendship, I will give you a statement in the case. The meeting of October, 1849, was a convention of delegates equally representing the Whig and Democratic parties in Mississippi. The resolutions were decisive as to equality of right in the South with the North to the Territories acquired from Mexico, and proposed a convention of the Southern States. I was not a member, but on invitation addressed the Convention. The succeeding Legislature instructed me, as a Senator, to assert this equality, and, under the existing circumstances, to resist by all constitutional means the admission of California as a State. At a called session of the Legislature in 1850, a self-constituted committee called on me, by letter, for my views. They were men who had enacted or approved the resolutions of the Convention of 1849, and instructed me, as members of the Legislature, in regular session, in the early part of the year 1850. To them I replied that I adhered to the policy they had indicated and instructed me in their official character to pursue.

"I pointed out the mode in which their policy could, in my opinion, be executed without bloodshed or disastrous convulsion, but in terms of bitter scorn alluded to such as would insult me with a desire to destroy the Union, for which my whole life proved me to be a devotee.

"Pardon the egotism, in consideration of the occasion, when I say to you that my father and my uncles fought through the Revolution of 1776, giving their youth, their blood, and their little patrimony to the constitutional freedom which I claim as my inheritance. Three of my brothers fought in the war of 1812. Two of them were comrades of the Hero of the Hermitage, and received his commendation for gallantry at New Orleans. At sixteen years of age I was given to the service of my country; for twelve years of my life I have borne its arms and served it zealously, if not well. As I feel the infirmities, which suffering more than age has brought upon me, it would be a bitter reflection, indeed, if I was forced to conclude that my countrymen would hold all this light when weighed against the empty panegyric which a time-serving politician can bestow upon the Union, for which he never made a sacrifice.

"In the Senate I announced that, if any respectable man would call me a disunionist, I would answer him in monosyllables. . . . But I have often asserted the right, for which the battles of the Revolution were fought—the right of a people to change their government whenever it was found to be oppressive, and subversive of the objects for which governments are instituted—and have contended for

the time portended danger to the South from the usurpation by the General Government of undelegated powers, I counseled that Mississippi should enter into the proposed meeting of the people of the Southern States, to consider what could and should be done to insure our future safety, frankly stating my conviction that, unless such action were taken then, sectional rivalry would engender greater evils in the future, and that, if the controversy was postponed, "the last opportunity for a peaceful solution would be lost, then the issue would have to be settled by blood."

## CHAPTER IV.

The Author enters the Cabinet.—Administration of the War Department.—Surveys for a Pacific Railway.—Extension of the Capitol.—New Regiments organized.—Colonel Samuel Cooper, Adjutant-General.—A Bit of Civil-Service Reform.—Resilection to the Senate.—Continuity of the Pierce Cabinet.—Character of Franklin Pierce.

HAPPY in the peaceful pursuits of a planter; busily engaged in cares for servants, in the improvement of my land, in building, in rearing live-stock, and the like occupations, the time passed pleasantly away until my retirement was interrupted by an invitation to take a place in the Cabinet of Mr. Pierce, who had been elected to the Presidency of the United States in November, 1852. Although warmly attached to Mr. Pierce personally, and entertaining the highest estimate of his character and political principles, private and personal reasons led me to decline the offer. This was followed by an invitation to attend the ceremony of his inauguration, which took place on the 4th of March, 1853. While in Washington, on this visit, I was

the independence and sovereignty of the States, a part of the creed of which Jefferson was the apostle, Madison the expounder, and Jackson the consistent defender.

"I have written freely, and more than I designed. Accept my thanks for your friendly advocacy. Present me in terms of kind remembrance to your family, and believe me, very sincerely yours,

JEFFERSON DAVIS.

"NOTE.—No party in Mississippi ever advocated disunion. They differed as to the mode of securing their rights in the Union, and on the power of a State to secede—neither advocating the exercise of the power. J. D."

induced by public considerations to reconsider my determination and accept the office of Secretary of War. The public records of that period will best show how the duties of that office were performed.

While in the Senate, I had advocated the construction of a railway to connect the valley of the Mississippi with the Pacific coast; and, when an appropriation was made to determine the most eligible route for that purpose, the Secretary of War was charged with its application. We had then but little of that minute and accurate knowledge of the interior of the continent which was requisite for a determination of the problem. Several different parties were therefore organized to examine the various routes supposed to be practicable within the northern and southern limits of the United States. The arguments which I had used as a Senator were "the military necessity for such means of transportation, and the need of safe and rapid communication with the Pacific slope, to secure its continuance as a part of the Union."

In the organization and equipment of these parties, and in the selection of their officers, care was taken to provide for securing full and accurate information upon every point involved in the determination of the route. The only discrimination made was in the more prompt and thorough equipment of the parties for the extreme northern line, and this was only because that was supposed to be the most difficult of execution of all the surveys.

In like manner, my advocacy while in the Senate of an extension of the Capitol, by the construction of a new Senate-Chamber and Hall of Representatives, may have caused the appropriation for that object to be put under my charge as Secretary of War.

During my administration of the War Department, material changes were made in the models of arms. Iron gun-carriages were introduced, and experiments were made which led to the casting of heavy guns hollow, instead of boring them after casting. Inquiries were made with regard to gunpowder, which subsequently led to the use of a coarser grain for artillery.

During the same period the army was increased by the addition of two regiments of infantry and two of cavalry. The

officers of these regiments were chosen partly by selection from those already in service in the regular army and partly by appointment from civil life. In making the selections from the army, I was continually indebted to the assistance of that pure-minded and accurately informed officer, Colonel Samuel Cooper, the Adjutant-General, of whom it may be proper here to say that, although his life had been spent in the army, and he, of course, had the likes and dislikes inseparable from men who are brought into close contact and occasional rivalry, I never found in his official recommendations any indication of partiality or prejudice toward any one.

When the first list was made out, to be submitted to the President, a difficulty was found to exist, which had not occurred either to Colonel Cooper or myself. This was, that the officers selected purely on their military record did not constitute a roster conforming to that distribution among the different States, which, for political considerations, it was thought desirable to observe—that is to say, the number of such officers of Southern birth was found to be disproportionately great. Under instructions from the President, the list was therefore revised and modified in accordance with this new element of geographical distribution. This, as I am happy to remember, was the only occasion in which the current of my official action, while Secretary of War, was disturbed in any way by sectional or political considerations.

Under former administrations of the War Office it had not been customary to make removals or appointments upon political grounds, except in the case of clerkships. To this usage I not only adhered, but extended it to include the clerkships also. The Chief Clerk, who had been removed by my predecessor, had peculiar qualifications for the place; and, although known to me only officially, he was restored to the position. It will probably be conceded by all who are well informed on the subject that his restoration was a benefit to the public service.\*

[The reader desirous for further information relative to the

\* Soon after my entrance upon duty as Secretary of War, General Jesup, the Quartermaster-General, presented to me a list of names from which to make selection of a clerk for his department. Observing that he had attached certain figures

administration of the War Department during this period may find it in the various official reports and estimates of works of defense prosecuted or recommended, arsenals of construction and depots of arms maintained or suggested, and foundries employed, during the Presidency of Mr. Pierce, 1853-'57.]

Having been again elected by the Legislature of Mississippi as Senator to the United States, I passed from the Cabinet of Mr. Pierce, on the last day of his term (March 4, 1857), to take my seat in the Senate.

The Administration of Franklin Pierce presents the only instance in our history of the continuance of a Cabinet for four years without a single change in its *personnel*. When it is remembered that there was much dissimilarity if not incongruity of character among the members of that Cabinet, some idea may be formed of the power over men possessed and exercised by Mr. Pierce. Chivalrous, generous, amiable, true to his friends and to his faith, frank and bold in the declaration of his opinions, he never deceived any one. And, if treachery had ever come near him, it would have stood abashed in the presence of his truth, his manliness, and his confiding simplicity.

to these names, I asked whether the figures were intended to indicate the relative qualifications, or preference in his estimation, of the several applicants; and, upon his answer in the affirmative, without further question, authorized him to appoint "No. 1" of his list. A day or two afterward, certain Democratic members of Congress called on me and politely inquired whether it was true that I had appointed a Whig to a position in the War Office. "Certainly not," I answered. "We thought you were not aware of it," said they, and proceeded to inform me that Mr. —, the recent appointee to the clerkship just mentioned, was a Whig. After listening patiently to this statement, I answered that it was they who were deceived, not I. I had appointed a clerk. He had been appointed neither as a Whig nor as a Democrat, but merely as the fittest candidate for the place in the estimation of the chief of the bureau to which it belonged. I further gave them to understand that the same principle of selection would be followed in similar cases, so far as my authority extended. After some further discussion of the question, the visitors withdrew, dissatisfied with the result of the interview.

The Quartermaster-General, on hearing of this conversation, hastened to inform me that it was all a mistake—that the appointee to the office had been confounded with his father, who was a well-known Whig, but that he (the son) was a Democrat. I assured the General that this was altogether immaterial, adding that it was "a very pretty quarrel" as it stood, and that I had no desire to effect a settlement of it on any inferior issue. Thenceforward, however, I was but little troubled with any pressure for political appointments in the department.

## CHAPTER V.

The Territorial Question.—An Incident at the White House.—The Kansas and Nebraska Bill.—The Missouri Compromise abrogated in 1850, not in 1854.—Origin of "Squatter Sovereignty."—Sectional Rivalry and its Consequences.—The Emigrant Aid Societies.—"The Bible and Sharpe's Rifles."—False Pretensions as to Principle.—The Strife in Kansas.—A Retrospect.—The Original Equilibrium of Power and its Overthrow.—Usurpations of the Federal Government.—The Protective Tariff.—Origin and Progress of Abolitionism.—Who were the Friends of the Union?—An Illustration of Political Morality.

THE organization of the Territory of Kansas was the first question that gave rise to exciting debate after my return to the Senate. The celebrated Kansas-Nebraska Bill had become a law during the Administration of Mr. Pierce. As this occupies a large space in the political history of the period, it is proper to state some facts connected with it, which were not public, but were known to me and to others yet living.

The declaration, often repeated in 1850, that climate and the will of the people concerned should determine their institutions when they should form a Constitution, and as a State be admitted into the Union, and that no legislation by Congress should be permitted to interfere with the free exercise of that will when so expressed, was but the announcement of the fact so firmly established in the Constitution, that sovereignty resided alone in the States, and that Congress had only delegated powers. It has been sometimes contended that, because the Congress of the Confederation, by the Ordinance of 1787, prohibited involuntary servitude in all the Northwestern Territory, the framers of the Constitution must have recognized such power to exist in the Congress of the United States. Hence the deduction that the prohibitory clause of what is known as the Missouri Compromise was justified by the precedent of the Ordinance of 1787. To make the action of the Congress of the Confederation a precedent for the Congress of the United States is to overlook the great distinction between the two.

The Congress of the Confederation represented the States in their sovereignty, and, as such representatives, had legislative,

executive, and, in some degree, judicial power confided to it. Virtually, it was an assemblage of the States. In certain cases a majority of nine States were required to decide a question, but there is no express limitation, or restriction, such as is to be found in the ninth and tenth amendments to the Constitution of the United States. The General Government of the Union is composed of three departments, of which the Congress is the legislative branch, and which is checked by the revisory power of the judiciary, and the veto power of the Executive, and, above all, is expressly limited in legislation to powers expressly delegated by the States. If, then, it be admitted, which is certainly questionable, that the Congress of the Confederation had power to exclude slave property northwest of the Ohio River, that power must have been derived from its character as representing the States in their sovereignty, for no indication of such a power is to be found in the Articles of Confederation.

If it be assumed that the absence of a prohibition was equivalent to the admission of the power in the Congress of the Confederation, the assumption would avail nothing in the Congress under the Constitution, where power is expressly limited to what had been delegated. More briefly, it may be stated that the Congress of the Confederation could, like the Legislature of a State, do what had not been prohibited; but the Congress of the United States could only do what had been expressly permitted. It is submitted whether this last position is not conclusive against the possession of power by the United States Congress to legislate slavery into or exclude it from Territories belonging to the United States.

This subject, which had for more than a quarter of a century been one of angry discussion and sectional strife, was revived, and found occasion for renewed discussion in the organization of Territorial governments for Kansas and Nebraska. The Committees on Territories of the two Houses agreed to report a bill in accordance with that recognized principle, provided they could first be assured that it would receive favorable consideration from the President. This agreement was made on Saturday, and the ensuing Monday was the day (and the only day for two weeks) on which, according to the order of business estab-

lished by the rules of the House of Representatives, the bill could be introduced by the Committee of that House.

On Sunday morning, the 22d of January, 1854, gentlemen of each Committee called at my house, and Mr. Douglas, chairman of the Senate Committee, fully explained the proposed bill, and stated their purpose to be, through my aid, to obtain an interview on that day with the President, to ascertain whether the bill would meet his approbation. The President was known to be rigidly opposed to the reception of visits on Sunday for the discussion of any political subject; but in this case it was urged as necessary, in order to enable the Committee to make their report the next day. I went with them to the Executive mansion, and, leaving them in the reception-room, sought the President in his private apartments, and explained to him the occasion of the visit. He thereupon met the gentlemen, patiently listened to the reading of the bill and their explanations of it, decided that it rested upon sound constitutional principles, and recognized in it only a return to that rule which had been infringed by the compromise of 1820, and the restoration of which had been foreshadowed by the legislation of 1850. This bill was not, therefore, as has been improperly asserted, a measure inspired by Mr. Pierce or any of his Cabinet. Nor was it the first step taken toward the repeal of the conditions or obligations expressed or implied by the establishment, in 1820, of the politico-sectional line of thirty-six degrees and thirty minutes. That compact had been virtually abrogated, in 1850, by the refusal of the representatives of the North to apply it to the territory then recently acquired from Mexico. In May, 1854, the Kansas-Nebraska Bill was passed; its purpose was declared in the bill itself to be to carry into practical operation the "propositions and principles established by the compromise measures of 1850." The "Missouri Compromise," therefore, was not repealed by that bill—its virtual repeal by the legislation of 1850 was recognized as an existing fact, and it was declared to be "inoperative and void."

It was added that the "true intent and meaning" of the act was "not to legislate slavery into any Territory or State, nor to exclude it therefrom, but to leave the people thereof perfectly



free to form and regulate their domestic institutions in their own way, subject only to the Constitution of the United States."

From the terms of this bill, as well as from the arguments that were used in its behalf, it is evident that its purpose was to leave the Territories equally open to the people of all the States, with every species of property recognized by any of them; to permit climate and soil to determine the current of immigration, and to secure to the people themselves the right to form their own institutions according to their own will, as soon as they should acquire the right of self-government; that is to say, as soon as their numbers should entitle them to organize themselves into a State, prepared to take its place as an equal, sovereign member of the Federal Union. The claim, afterward advanced by Mr. Douglas and others, that this declaration was intended to assert the right of the first settlers of a Territory, in its inchoate, rudimental, dependent, and transitional condition, to determine the character of its institutions, constituted the doctrine popularly known as "squatter sovereignty." Its assertion led to the dissensions which ultimately resulted in a rupture of the Democratic party.

Sectional rivalry, the deadly foe of the "domestic tranquility" and the "general welfare," which the compact of union was formed to insure, now interfered, with gigantic efforts, to prevent that free migration which had been promised, and to hinder the decision by climate and the interests of the inhabitants of the institutions to be established by these embryo States. Societies were formed in the North to supply money and send emigrants into the new Territories; and a famous preacher, addressing a body of those emigrants, charged them to carry with them to Kansas "the Bible and Sharpe's rifles." The latter were of course to be leveled against the bosoms of their Southern brethren who might migrate to the same Territory, but the use to be made of the Bible in the same fraternal enterprise was left unexplained by the reverend gentleman.

The war-cry employed to train the Northern mind for the deeds contemplated by the agitators was "No extension of slavery!" Was this sentiment real or feigned? The number of slaves (as has already been clearly shown) would not have

been increased by their transportation to new territory. It could not be augmented by further importation, for the law of the land made that piracy. Southern men were the leading authors of that enactment, and the public opinion of their descendants, stronger than the law, fully sustained it. The climate of Kansas and Nebraska was altogether unsuited to the negro, and the soil was not adapted to those productions for which negro labor could be profitably employed. If, then, any negroes held to service or labor, as provided in the compact of union, had been transported to those Territories, they would have been such as were bound by personal attachment mutually existing between master and servant, which would have rendered it impossible for the former to consider the latter as property convertible into money. As white laborers, adapted to the climate and its products, flowed into the country, negro labor would have inevitably become a tax to those who held it, and their emancipation would have followed that condition, as it has in all the Northern States, old or new—Wisconsin furnishing the last example.\* It may, therefore, be reasonably concluded that the "war-cry" was employed by the artful to inflame the minds of the less informed and less discerning; that it was adopted in utter disregard of the means by which negro emancipation might have been peaceably accomplished in the Territories, and with the sole object of obtaining sectional control and personal promotion by means of popular agitation.

The success attending this artifice was remarkable. To such

\* Extract from a speech of Mr. Davis, of Mississippi, in the Senate of the United States, May 17, 1860: "There is a relation belonging to this species of property, unlike that of the apprentice or the hired man, which awakens whatever there is of kindness or of nobility of soul in the heart of him who owns it; this can only be alienated, obscured, or destroyed, by collecting this species of property into such masses that the owner is not personally acquainted with the individuals who compose it. In the relation, however, which can exist in the Northwestern Territories, the mere domestic connection of one, two, or at most half a dozen servants in a family, associating with the children as they grow up, attending upon age as it declines, there can be nothing against which either philanthropy or humanity can make an appeal. Not even the emancipationist could raise his voice; for this is the high-road and the open gate to the condition in which the masters would, from interest, in a few years, desire the emancipation of every one who may thus be taken to the northwestern frontier."

an extent was it made available, that Northern indignation was aroused on the absurd accusation that the South had destroyed "that sacred instrument, the compromise of 1820." The internecine war which raged in Kansas for several years was substituted for the promised peace under the operation of the natural laws regulating migration to new countries. For the fratricide which dyed the virgin soil of Kansas with the blood of those who should have stood shoulder to shoulder in subduing the wilderness; for the frauds which corrupted the ballot-box and made the name of election a misnomer—let the authors of "squatter sovereignty" and the fomenters of sectional hatred answer to the posterity for whose peace and happiness the fathers formed the Federal compact.

In these scenes of strife were trained the incendiaries who afterward invaded Virginia under the leadership of John Brown; and at this time germinated the sentiments which led men of high position to sustain, with their influence and their money, this murderous incursion into the South.\*

Now was seen the lightning of that storm, the distant muttering of which had been heard so long, and against which the wise and the patriotic had given solemn warning, regarding it as the sign which portended a dissolution of the Union.

Diversity of interests and of opinions among the States of the Confederation had in the beginning presented great difficulties in the way of the formation of a more perfect union. The compact was the result of compromise between the States, at that time generally distinguished as navigating and agricultural, afterward as Northern and Southern. When the first census was taken, in 1790, there was but little numerical difference in the population of these two sections, and (including States about to be admitted) there was also an exact equality in the number of States. Each section had, therefore, the power of self-protection, and might feel secure against any danger of Federal aggression. If the disturbance of that equilibrium had been the consequence of natural causes, and the government of the whole had continued to be administered strictly for the general wel-

\* See "Report of Senate Committee of Inquiry into the John Brown Raid."

fare, there would have been no ground for complaint of the result.

Under the old Confederation the Southern States had a large excess of territory. The acquisition of Louisiana, of Florida, and of Texas, afterward greatly increased this excess. The generosity and patriotism of Virginia led her, before the adoption of the Constitution, to cede the Northwest Territory to the United States. The "Missouri Compromise" surrendered to the North all the newly acquired region not included in the State of Missouri, and north of the parallel of thirty-six degrees and a half. The northern part of Texas was in like manner given up by the compromise of 1850; and the North, having obtained, by those successive cessions, a majority in both Houses of Congress, took to itself all the territory acquired from Mexico. Thus, by the action of the General Government, the means were provided permanently to destroy the original equilibrium between the sections.

Nor was this the only injury to which the South was subjected. Under the power of Congress to levy duties on imports, tariff laws were enacted, not merely "to pay the debts and provide for the common defense and general welfare of the United States," as authorized by the Constitution, but, positively and primarily, for the protection against foreign competition of domestic manufactures. The effect of this was to impose the main burden of taxation upon the Southern people, who were consumers and not manufacturers, not only by the enhanced price of imports, but indirectly by the consequent depreciation in the value of exports, which were chiefly the products of Southern States. The imposition of this grievance was unaccompanied by the consolation of knowing that the tax thus borne was to be paid into the public Treasury, for the increase of price accrued mainly to the benefit of the manufacturer. Nor was this all: a reference to the annual appropriations will show that the disbursements made were as unequal as the burdens borne—the inequality in both operating in the same direction.

These causes all combined to direct immigration to the Northern section; and with the increase of its preponderance appeared more and more distinctly a tendency in the Federal Govern-

ment to pervert functions delegated to it, and to use them with sectional discrimination against the minority.

The resistance to the admission of Missouri as a State, in 1820, was evidently not owing to any moral or constitutional considerations, but merely to political motives; and the compensation exacted for granting what was simply a right, was the exclusion of the South from equality in the enjoyment of territory which justly belonged equally to both, and which was what the enemies of the South stigmatized as "slave territory," when acquired.

The sectional policy then indicated brought to its support the passions that spring from man's higher nature, but which, like all passions, if misdirected and perverted, become hurtful and, it may be, destructive. The year 1835 was marked by the public agitation for the abolition of that African servitude which existed in the South, which antedated the Union, and had existed in every one of the States that formed the Confederation. By a great misconception of the powers belonging to the General Government, and the responsibilities of citizens of the Northern States, many of those citizens were, little by little, brought to the conclusion that slavery was a sin for which *they* were answerable, and that it was the duty of the Federal Government to abate it. Though, at the date above referred to, numerically so weak, when compared with either of the political parties at the North, as to excite no apprehension of their power for evil, the public demonstrations of the Abolitionists were violently rebuked generally at the North. The party was contemned on account of the character of its leaders, and the more odious because chief among them was an Englishman, one Thompson, who was supposed to be an emissary, whose mission was to prepare the way for a dissolution of the Union. Let us hope that it was reverence for the obligations of the Constitution as the soul of the Union that suggested lurking danger, and rendered the supposed emissary for its destruction so odious that he was driven from a Massachusetts hall where he attempted to lecture. But bodies in motion will overcome bodies at rest, and the unreflecting too often are led by captivating names far from the principles they revere.

Thus, by the activity of the propagandists of abolitionism, and the misuse of the sacred word Liberty, they recruited from the ardent worshippers of that goddess such numbers as gave them in many Northern States the balance of power between the two great political forces that stood arrayed against each other; then and there they came to be courted by both of the great parties, especially by the Whigs, who had become the weaker party of the two. Fanaticism, to which is usually accorded sincerity as an extenuation of its mischievous tenets, affords the best excuse to be offered for the original abolitionists, but that can not be conceded to the political associates who joined them for the purpose of acquiring power; with them it was but hypocritical cant, intended to deceive. Hence arose the declaration of the existence of an "irrepressible conflict," because of the domestic institutions of sovereign, self-governing States—institutions over which neither the Federal Government nor the people outside of the limits of such States had any control, and for which they could have no moral or legal responsibility.

Those who are to come after us, and who will look without prejudice or excitement at the record of events which have occurred in our day, will not fail to wonder how men professing and proclaiming such a belief should have so far imposed upon the credulity of the world as to be able to arrogate to themselves the claim of being the special friends of a Union contracted in order to insure "domestic tranquillity" among the people of the States united; that *they* were the advocates of peace, of law, and of order, who, when taking an oath to support and maintain the Constitution, did so with a mental reservation to violate one of the provisions of that Constitution—one of the conditions of the compact—without which the Union could never have been formed. The tone of political morality which could make this possible was well indicated by the toleration accorded in the Senate to the flippant, inconsequential excuse for it given by one of its most eminent exemplars—"Is thy servant a dog, that he should do this thing?"—meaning thereby, not that it would be the part of a dog to *violate* his oath, but to *keep* it in the matter referred to. (See Appendix D.)

## CHAPTER VI.

Agitation continued.—Political Parties : their Origin, Changes, and Modifications.—Some Account of the "Popular Sovereignty," or "Non-Intervention," Theory.—Rupture of the Democratic Party.—The John Brown Raid.—Resolutions introduced by the Author into the Senate on the Relations of the States, the Federal Government, and the Territories ; their Discussion and Adoption.

THE strife in Kansas and the agitation of the territorial question in Congress and throughout the country continued during nearly the whole of Mr. Buchanan's Administration, finally culminating in a disruption of the Union. Meantime the changes, or modifications, which had occurred or were occurring in the great political parties, were such as may require a word of explanation to the reader not already familiar with their history.

The *names* adopted by political parties in the United States have not always been strictly significant of their principles. The old Federal party inclined to nationalism, or consolidation, rather than federalization, of the States. On the other hand, the party originally known as Republican, and afterward as Democratic, can scarcely claim to have been distinctively or exclusively such in the primary sense of these terms, inasmuch as no party has ever avowed opposition to the general principles of government by the people. The fundamental idea of the Democratic party was that of the sovereignty of the States and the federal, or confederate, character of the Union. Other elements have entered into its organization at different periods, but this has been the vital, cardinal, and abiding principle on which its existence has been perpetuated. The Whig, which succeeded the old Federal party, though by no means identical with it, was, in the main, favorable to a strong central government, therein antagonizing the transatlantic traditions connected with its name. The "Know-Nothing," or "American," party, which sprang into existence on the decadence of the Whig organization, based upon opposition to the alleged overgrowth of the political influence of naturalized foreigners and of the Roman Catholic Church, had but a brief duration, and after the Presidential election of 1856 declined as rapidly as it had arisen.

At the period to which this narrative has advanced, the "Free-Soil," which had now assumed the title of "Republican" party, had grown to a magnitude which threatened speedily to obtain entire control of the Government. Based, as has been shown, upon sectional rivalry and opposition to the growth of the Southern equally with the Northern States of the Union, it had absorbed within itself not only the abolitionists, who were avowedly agitating for the destruction of the system of negro servitude, but other diverse and heterogeneous elements of opposition to the Democratic party. In the Presidential election of 1856, their candidates (Fremont and Dayton) had received 114 of a total of 296 electoral votes, representing a popular vote of 1,341,264 in a total of 4,053,967. The elections of the ensuing year (1857) exhibited a diminution of the so-called "Republican" strength, and the Thirty-fifth Congress, which convened in December of that year, was decidedly Democratic in both branches. In the course of the next two years, however, the Kansas agitation and another cause, to be presently noticed, had so swollen the ranks of the so-called Republicans, that, in the House of Representatives of the Thirty-sixth Congress, which met in December, 1859, neither party had a decided majority, the balance of power being held by a few members still adhering to the virtually extinct Whig and "American," or Know-Nothing, organizations, and a still smaller number whose position was doubtful or irregular. More than eight weeks were spent in the election of a Speaker; and a so-called "Republican" (Mr. Pennington, of New Jersey) was finally elected by a majority of one vote. The Senate continued to be decidedly Democratic, though with an increase of the so-called "Republican" minority.

The cause above alluded to, as contributing to the rapid growth of the so-called Republican party after the elections of the year 1857, was the dissension among the Democrats, occasioned by the introduction of the doctrine called by its inventors and advocates "popular sovereignty," or "non-intervention," but more generally and more accurately known as "squatter sovereignty." Its character has already been concisely stated in the preceding chapter. Its origin is generally attributed to



General Cass, who is supposed to have suggested it in some general expressions of his celebrated "Nicholson letter," written in December, 1847. On the 16th and 17th of May, 1860, it became necessary for me in a debate, in the Senate, to review that letter of Mr. Cass. From my remarks then made, the following extract is taken :

"The Senator [Mr. Douglas] might have remembered, if he had chosen to recollect so unimportant a thing, that I once had to explain to him, ten years ago, the fact that I repudiated the doctrine of that letter at the time it was published, and that the Democracy of Mississippi had well-nigh crucified me for the construction which I placed upon it. There were men mean enough to suspect that the construction I gave to the Nicholson letter was prompted by the confidence and affection I felt for General Taylor. At a subsequent period, however, Mr. Cass thoroughly reviewed it. He uttered (for him) very harsh language against all who had doubted the true construction of his letter, and he construed it just as I had done during the canvass of 1848. It remains only to add that I supported Mr. Cass, not because of the doctrine of the Nicholson letter, but in despite of it ; because I believed a Democratic President, with a Democratic Cabinet and Democratic counselors in the two Houses of Congress, and he as honest a man as I believed Mr. Cass to be, would be a safer reliance than his opponent, who personally possessed my confidence as much as any man living, but who was of, and must draw his advisers from, a party the tenets of which I believed to be opposed to the interests of the country, as they were to all my political convictions.

"I little thought at that time that my advocacy of Mr. Cass upon such grounds as these, or his support by the State of which I am a citizen, would at any future day be quoted as an endorsement of the opinions contained in the Nicholson letter, as those opinions were afterward defined. But it is not only upon this letter, but equally upon the resolutions of the Convention as constructive of that letter, that the Senator rested his argument. [I will here say to the Senator that, if at any time I do him the least injustice, speaking as I do from such notes as I could take while he progressed, I will thank him to correct me.]

"But this letter entered into the canvass ; there was a doubt about its construction : there were men who asserted that they

had positive authority for saying that it meant that the people of a Territory could only exclude slavery when the Territory should form a Constitution and be admitted as a State. This doubt continued to hang over the construction, and it was that doubt alone which secured Mr. Cass the vote of Mississippi. If the true construction had been certainly known, he would have had no chance to get it."

Whatever meaning the generally discreet and conservative statesman, Mr. Cass, may have intended to convey, it is not at all probable that he foresaw the extent to which the suggestions would be carried and the consequences that would result from it.

In the organization of a government for California in 1850, the theory was more distinctly advanced, but it was not until after the passage of the Kansas-Nebraska Bill, in 1854, that it was fully developed under the plastic and constructive genius of the Hon. Stephen A. Douglas, of Illinois. The leading part which that distinguished Senator had borne in the authorship and advocacy of the Kansas-Nebraska Bill, which affirmed the right of the people of the Territories "to form and regulate their domestic institutions in their own way, subject only to the Constitution of the United States," had aroused against him a violent storm of denunciation in the State which he represented and other Northern States. He met it very manfully in some respects, defended his action resolutely, but in so doing was led to make such concessions of principle and to attach such an interpretation to the bill as would have rendered it practically nugatory—a thing to keep the promise of peace to the ear and break it to the hope.

The Constitution expressly confers upon Congress the power to admit new States into the Union, and also to "dispose of and make all needful rules and regulations respecting the territory or other property belonging to the United States." Under these grants of power, the uniform practice of the Government had been for Congress to lay off and divide the common territory by convenient boundaries for the formation of future States; to provide executive, legislative, and judicial departments of government for such Territories during their temporary and pro-

visional period of pupillage; to delegate to these governments such authority as might be expedient—subject always to the supervision and controlling government of the Congress. Finally, at the proper time, and on the attainment by the Territory of sufficient strength and population for self-government, to receive it into the Union on a footing of entire equality with the original States—sovereign and self-governing. All this is no more inconsistent with the true principles of “popular sovereignty,” properly understood, than the temporary subjection of a minor to parental control is inconsistent with the doctrines of the Declaration of Independence, or the exceptional discipline of a man-of-war or a military post with the principles of republican freedom.

The usual process of transition from a territorial condition to that of a State was, in the first place, by an act of Congress authorizing the inhabitants to elect representatives for a convention to form a State Constitution, which was then submitted to Congress for approval and ratification. On such ratification the supervisory control of Congress was withdrawn, and the new State authorized to assume its sovereignty, and the inhabitants of the Territory became citizens of a State. In the cases of Tennessee in 1796, and Arkansas and Michigan in 1836, the failure of the inhabitants to obtain an “enabling act” of Congress, before organizing themselves, very nearly caused the rejection of their applications for admission as States, though they were eventually granted on the ground that the subsequent approval and consent of Congress could heal the prior irregularity. The entire control of Congress over the whole subject of territorial government had never been questioned in earlier times. Necessarily conjoined with the *power* of this protectorate, was of course the *duty* of exercising it for the safety of the persons and property of all citizens of the United States, permanently or temporarily resident in any part of the domain belonging to the States in common.

Logically carried out, the new theory of “popular sovereignty” would apply to the first adventurous pioneers settling in the wilderness before the organization of any Territorial government by Congress, as well as afterward. If “sovereignty” is inhe-

rent in a thousand or five thousand persons, there can be no valid ground for denying its existence in a dozen, as soon as they pass beyond the limits of the State governments. The advocates of this novel doctrine, however, if rightly understood, generally disavowed any claim to its application prior to the organization of a territorial government.

The Territorial Legislatures, to which Congress delegated a portion of its power and duty to "make all needful rules and regulations respecting the Territory," were the mere agents of Congress, exercising an authority subject to Congressional supervision and control—an authority conferred only for the sake of convenience, and liable at any time to be revoked and annulled. Yet it is proposed to recognize in these provisional, subordinate, and temporary legislative bodies, a power not possessed by Congress itself. This is to claim that the creature is endowed with an authority not possessed by the creator, or that the stream has risen to an elevation above that of its source.

Furthermore, in contending for a power in the Territorial Legislatures permanently to determine the fundamental, social, and political institutions of the Territory, and thereby virtually to prescribe those of the future State, the advocates of "popular sovereignty" were investing those dependent and subsidiary bodies with powers far above any exercised by the Legislatures of the fully organized and sovereign States. The authority of the State Legislatures is limited, both by the Federal Constitution and by the respective State Constitutions from which it is derived. This latter limitation did not and could not exist in the Territories.

Strange as it may seem, a theory founded on fallacies so flimsy and leading to conclusions so paradoxical was advanced by eminent and experienced politicians, and accepted by many persons, both in the North and in the South—not so much, perhaps, from intelligent conviction as under the delusive hope that it would afford a satisfactory settlement of the "irrepressible conflict" which had been declared. The terms "popular sovereignty" and "non-intervention" were plausible, specious, and captivating to the public ear. Too many lost sight of the elementary truth that political sovereignty does not reside in un-